APPENDIX C

UNITED STATES COURT OF APPEALS
FOR THE FIFTH CIRCUIT

No. 23-10179

LEBENE KONAN, PLAINTIFF-APPELLANT

v.

UNITED STATES POSTAL SERVICE; RAYMOND ROJAS, ALSO KNOWN AS RAY; JASON DRAKE; UNITED STATES OF AMERICA, DEFENDANTS-APPELLANTS

[Filed: June 4, 2024]

Appeal from the United States District Court
for the Northern District of Texas
USDC No. 3:22-CV-139

ON PETITION FOR REHEARING EN BANC

Before WIENER, WILLETT, and DOUGLAS, *Circuit Judges*.

PER CURIAM:

Treating the petition for rehearing en banc as a petition for panel rehearing (5TH Cir. R. 35 I.O.P.), the petition for panel rehearing is DENIED. Because no member of the panel or judge in regular active service

[*] Judge Irma Carrillo Ramirez, did not participate in the consideration of the rehearing en banc.

requested that the court be polled on rehearing en banc (FED. R. APP. P. 35 and 5TH Cir. R. 35), the petition for rehearing en banc is DENIED.